

56 & 57 Vict.
c. 66.

(2) Section one of the Rules Publication Act, 1893, shall not apply to any order made under the Destructive Insects Act, 1877, or this Act.

(3) This Act shall apply to Ireland as if Ireland were named therein instead of Great Britain and with the substitution of the Department of Agriculture and Technical Instruction for Ireland for the Board of Agriculture and Fisheries.

Short title.

2. This Act may be cited as the Destructive Insects and Pests Act, 1907; and the Destructive Insects Act, 1877, and this Act may be cited together as the Destructive Insects and Pests Acts, 1877 and 1907.

CHAPTER 5.

An Act to re-enact with amendments the Injured Animals Act, 1894. [26th July 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Slaughter of
injured ani-
mals by or by
order of police.

1.—(1) If a police constable finds any animal so diseased or so severely injured or in such a physical condition that it cannot without cruelty be removed, he shall, if the owner is absent or refuses to consent to the destruction of the animal, at once summon a duly registered veterinary surgeon, if any such veterinary surgeon resides within a reasonable distance, and, if it appears by the certificate of such veterinary surgeon that the animal is mortally injured or so severely injured or so diseased or in such a physical condition that it is cruel to keep it alive, it shall be lawful for the police constable, without the consent of the owner, to slaughter the animal or cause it to be slaughtered with such instruments or appliances, and with such precautions, and in such manner, as to inflict as little pain and suffering as practicable, and, if the slaughter takes place in a street or public place, to remove the carcase or cause it to be removed therefrom.

(2) Any reasonable expense which may be incurred by any constable in carrying out the provisions of this Act may be recovered from the owner summarily as a civil debt, and, subject thereto, any such expense shall be defrayed out of the fund from which the expenses of the police are payable in the area in which the animal is found.

Definition of
animal.

2. For the purposes of this Act the word "animal" means any horse, mule, ass, bull, cow, ox, heifer, calf, sheep, goat, or swine.

Short title and
repeal.

3.—(1) This Act may be cited for all purposes as the Injured Animals Act, 1907.

57 & 58 Vict.
c. 22.

(2) The Injured Animals Act, 1894, is hereby repealed.